



This is for information and instruction. Do not file it.



HOW TO CLEAR YOUR CRIMINAL RECORD: EXPUNGEMENT & SEALING

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This packet is not legal advice. It provides general instructions on how to use these forms in your court case. It cannot and does not try to cover everything that might happen in your court case. Your use of the forms does not guarantee you will be successful in court.

How a judge handles a case can vary from county to county. **Your county may have special requirements that are not covered in these instructions.** Ask the Circuit Clerk's office if your county has local rules and, if so, where you can get a copy.

STEPS TO CLEAR YOUR CRIMINAL RECORD: EXPUNGEMENT & SEALING

1

REVIEW YOUR CRIMINAL RECORDS.

Criminal records list the offenses for which you were arrested, the offenses you were charged with, and the outcome of those cases, including any sentences you received. Learn how to read your criminal record and find out if your cases can be expunged or sealed.

- Pick **expungement** for arrests or cases that resulted in acquittals, dismissals or non-conviction sentences (see types of offenses that can be expunged under Step 2).
- Pick **sealing** for cases that resulted in a conviction (see types of offenses that can be sealed under Step 2).

For information about where to get copies of your criminal record, see page 6.
Fill out the **Case Worksheet** on Page 16.

2

FILL OUT AND FILE THE FORMS.

You can fill out these forms to erase arrest, court supervisions, and some types of probation from your criminal record so it is like they never happened. These forms can also hide certain criminal convictions from public view.

Use these forms:

- *Request to Expunge and/or Seal Criminal Records*
- *Case List for Request to Expunge and/or Seal Criminal Records*
- *Order to Expunge and/or Seal Criminal Records*
- *Order Denying Request to Expunge and/or Seal Criminal Records*
- *Additional Arrests or Cases for Expungement* (if needed)
- *Additional Arrests or Cases for Sealing* (if needed)

3

NEXT STEPS FOR EXPUNGEMENT & SEALING.

You may need to go to court for a court date in front of a judge. Some counties schedule a court date right away, but others will only schedule a court date if there is an objection to your *Request*.

If the judge approves your *Request*, a copy of the *Order* will be sent by the Circuit Clerk to the police departments and prosecutors for your criminal cases. These agencies have 60 days from the time they receive a copy of the *Order* to expunge or seal your records.

Laws covering these forms: [20 ILCS 2630/5.2](#)

ARE THESE FORMS FOR ME?

You may use these forms to **ask the court to expunge and seal criminal records** if:

- You have been arrested or charged with criminal offenses or convicted of an eligible criminal offense in Illinois.

Do not use these forms for:

- **Juvenile Records:** If you were detained or arrested by the police as a juvenile or charged in juvenile court, do not use this form. Instead, use the court forms for expungement of your juvenile records found here: ilcourts.info/expunge-forms. For more information visit: ilao.info/jv-expungement-basics or osad.illinois.gov/expungement.html.
- **Stolen Identity:** If the person that was arrested was not you but impersonated you to the police, do not use this form. Instead file a request to have your record corrected due to identity theft. You can get the form to correct your record due to identity theft at: ilao.info/remove-crim-record-id-theft.
- **Eviction cases:** Evictions are civil cases and do not appear on your criminal record. For more information about sealing evictions visit: ilao.info/eviction-record.
- **Firearms Restraining Orders:** Firearms Restraining Orders are civil cases. For more information about firearm restraining orders, visit ilao.info/fro-faq.
- **Out-of-State Records and Federal Records:** Do not use this form for criminal records from a state other than Illinois, or for federal criminal records.
 - If your criminal charge is from another state, check with the state where you were charged to see if expungement is an option.
 - If you were charged in federal court, check with the U.S. Department of Justice at: justice.gov/pardon.
- **Civil Cases:** If you were involved in a civil case, like an order of protection, it will not appear on your criminal record and cannot be expunged or sealed.
- **Minor Traffic Cases:** A minor traffic case is a Class C misdemeanor or below.

FORMS REQUIRED:

- ***Request to Expunge and/or Seal Criminal Records:*** Gives the court the information needed to decide if you can have your criminal record expunged or sealed.
- ***Case List for Request to Expunge and/or Seal Criminal Records:*** Gives the court a complete list of all the arrests and cases you are asking to have expunged or sealed.
- ***Order to Expunge and/or Seal Criminal Records:*** Used by the judge to say which cases from your *Request* are approved.
- ***Order Denying Request to Expunge and/or Seal Criminal Records:*** Used by the judge to say which cases from your *Request* are denied.

FORMS YOU MAY NEED:

- ***Additional Arrests or Cases for Expungement:*** Use this form if you have more arrests or cases to expunge than will fit on the *Request* form.
- ***Additional Arrests or Cases for Sealing:*** Use this form if you have more arrests or cases to seal than will fit on the *Request* form.

You can find all of the statewide forms online at ilcourts.info/forms.

IMPORTANT INFORMATION

What are the options to clear my criminal record in Illinois?

When you are arrested or charged with an offense, a criminal record is created, even if you are not found guilty. Your criminal records can be read by the public, including your family, friends, employers, trade organizations, banks, and credit agencies. To have your record erased or hidden you must file a *Request to Expunge and/or Seal Criminal Records* with the court and have a judge approve your *Request*.

There are 3 ways to clear your criminal record:

- **Expungement:** Erases arrests, dismissed charges, court supervisions, and qualified probations that were completed successfully from your criminal record so it is like they never happened.
- **Sealing:** Hides convictions on your criminal record from most of the public. Law enforcement agencies can still see sealed records. Employers required by law to conduct background checks can see sealed felony convictions. They cannot see sealed misdemeanor convictions or cases not resulting in convictions unless the employer is a law enforcement agency.
- **Executive Clemency:** If you do not qualify for expungement or sealing, you can apply for a pardon from the Governor forgiving you for your criminal convictions. A pardon does not erase or hide your conviction on its own. If you get a pardon authorizing expungement, you can then apply to have your record expunged.
To learn more about getting a pardon go to ilao.info/apply-exec-clemency.

What could stop me from getting my criminal record expunged (erased)?

You may not be eligible for expungement if any of the following apply:

- You have any pending criminal charges.
- You have not completed your sentence, including parole, probation, or court supervision.
- You have court supervisions and qualified probations that are eligible for expungement, but the required waiting period has not passed yet. (See the waiting periods for different offenses in Step 2 under "What types of offenses CAN be expunged (erased)?").

The judge decides whether your criminal record will be expunged.

What could stop me from getting my criminal record sealed (hidden)?

You may not be eligible to have your record sealed if:

- You have any pending criminal charges.
- You have not completed your sentence, including parole, probation, or court supervision.
- The required waiting period for sealing your offense has not passed yet.

The judge decides whether your criminal record will be sealed.

What if I have been arrested, charged with an offense, or convicted in more than one Illinois county?

You will have a criminal record in each county. You will have to:

- Get your criminal records from each county.
- Review your criminal records from each county to find out if you qualify to expunge or seal each criminal record.
- Fill out expungement or sealing forms for your criminal records in each county.
- Pay filing fees in each county (except if you qualify for a fee waiver).

What if I have cannabis convictions on my record?

- If you have misdemeanor or Class 4 felony convictions related to cannabis, you may not need to use these forms. You may be eligible for a motion to vacate or fall under the automatic expungement process for that cannabis conviction.

- You can find forms to vacate and expunge eligible cannabis convictions here: ilcourts.info/expunge-forms.

Will I need to pay money to expunge or seal my criminal record?

- Criminal Record Fees: If you are seeking to expunge or seal cases that took place in Chicago, there is a fee to get a copy of your RAP (Record of Arrests and Prosecutions) sheet from the Chicago Police Department. There is also a fee to get your Statewide Criminal History Transcript from the Illinois State Police.
- Circuit Clerk Filing Fee: To file your expungement or sealing form. In certain places, a certified disposition fee may be required.
- Illinois State Police Processing Fee: To process your expungement or sealing court order. The Circuit Clerk collects this fee with the filing fee.



If you **cannot afford** the Circuit Clerk Filing Fee or the Illinois State Police Processing Fee, you can ask the court to waive those fees. You can ask the court to file for free or at a reduced cost by filing the *Application for Waiver of Court Fees* which you can find at ilcourts.info/fee-waiver-forms.

Can anyone prevent me from getting my criminal record expunged or sealed?

- Yes. The police departments and prosecutors for your criminal cases get a chance to **object** to your *Request* to expunge or seal your criminal record.
 - The police departments and prosecutors have 60 days from the day they receive your *Request* to file a written objection with the court. If they object, it means they do not want your record to be expunged or sealed. If the agencies do not object during the 60 days, they cannot object at a later time.
- An **objection** does not mean the court is denying your *Request*. The court will consider the objection when deciding if your criminal record will be expunged or sealed.

How long will it take before I know if my record will be expunged or sealed?

It may take a few months to find out if your record will be expunged or sealed because:

- The State's Attorney, the Illinois State Police, and Arresting Agencies get 60 days from the day they receive your *Request* to object to it.
- Courts are busy and it may take a while for a judge to review your *Request*.
- If the court grants your *Request*, law enforcement agencies may take up to 60 days from the day they receive the court order to clear your criminal record.

What if I move before my expungement or sealing case is over?

- If you move before your case is over, immediately notify the Circuit Clerk of your new address. If you do not tell the court your new address, you may not receive notices of court dates and copies of court orders.



STEP 1 REVIEW YOUR CRIMINAL RECORDS.

Why do I need my criminal records?

- You need this information to find out if your offenses can be expunged (erased) or sealed (hidden) and to fill out the forms.
- Criminal records list the offenses for which you were arrested, the offenses you were charged with, and the outcome of the cases, including any sentences you received.

What are the different types of criminal records?

There are two types of criminal records: court records and police records. **You do not need to pay for copies of all of your criminal records.**

- Court Records
 - You will need records for all of your court cases. This may be called a “docket sheet” or a “disposition.” A disposition is the final judgment or outcome in a court case. There are no court dispositions for arrests or charges that did not lead to a court case.
- Police Records
 - Chicago RAP Sheet (Record of Arrests and Prosecutions): List of all arrests, charges, and court case outcomes that happened **in Chicago**.
 - Illinois State Police Statewide Criminal History Transcript: List of most arrests and convictions that happened in Illinois.

How do I view or get copies of my criminal records?

- **Access your records from the Circuit Clerk.** Many court records are available online. Some counties, like Cook County, do not provide online access to criminal records.
 - If you cannot find your court records online, go to the Circuit Clerk’s Office in the county where your case was filed. Ask the Circuit Clerk for the information you need to fill out the forms. This information can be found in your court records.
 - You may be able to use the public computer at the Circuit Clerk’s office to look up records and print them out or write down the information. Copies are available for a fee. Find your Circuit Clerk’s website at: ilcourts.info/clerks.
- **Access your records from the Illinois State Police.** You are allowed to access your entire criminal history information from the Illinois State Police. Although not required, it is the best available source for your statewide criminal record. Please note, there might be discrepancies or missing information.

You can get a "Statewide Criminal History Transcript" in 3 ways:

- From the **Illinois State Police**:
Illinois State Police, Bureau of Identification
260 North Chicago Street, Joliet, Illinois 60432
(815) 740-5160
isp.illinois.gov/BureauOfIdentification
 - From your **local law enforcement agency**:
Every law enforcement agency is allowed to provide you this information. Check with your local law enforcement agency to find out costs and times for fingerprinting.
 - From any **licensed LiveScan vendor** to get your transcript using your fingerprint. Find a LiveScan vendor at: idfprapps.illinois.gov/licenselookup/fingerprintlist.asp.
- **If you were arrested in Chicago, you MUST get your records from the Chicago Police Department.** Order a RAP sheet from the Chicago Police Department if you were arrested in Chicago. There will be a fee.
 - You must go to the Chicago Police Department to get your Chicago RAP sheet:
Chicago Police Headquarters
3510 S. Michigan Ave., Chicago, IL
(312) 745-5508
 - You will receive your RAP sheet in the mail.
 - You should also request a copy of your Illinois State Police Statewide Criminal History Transcript. The Chicago Police will provide your state record for no additional cost.

How do I know if the offenses on my criminal record can be expunged or sealed?

There are different legal requirements for expungement and sealing. You have to figure out whether expungement or sealing is right for each of your offenses before you start filling out the forms.

To figure out if your offenses can be expunged or sealed, you need to look at each item in your criminal record and find the following details:

- The **Arrest date** and the **police department** that arrested you.
- **Charge**: The offense you were charged with in court, or the offense you were arrested for and released without being charged.
- **Disposition (Outcome)**: The outcome of the case. For example, guilty or not guilty.
- **Sentence**: The penalty or punishment you received.
- The **date you completed the sentence**, including any probation or supervision.

Once you find this information on your criminal record, compare it to the eligibility rules listed below to see if your offenses can be expunged or sealed.

What Types of Offenses CAN be Expunged?

- **Arrests** for misdemeanors and felonies that did not result in a conviction.
- Convictions for misdemeanors and felonies **only if**:
 - The conviction was **reversed or vacated**.
 - You received a **pardon** from the Governor allowing expungement of all convictions on your record.
 - As an Honorably Discharged Veteran, you have a Certificate of Eligibility for Expungement from the Prisoner Review Board allowing expungement of all convictions on your record.
 - An eligible misdemeanor or Class 4 **cannabis conviction** under the Illinois Cannabis Regulation and Tax Act, [410 ILCS 705](#).
- Sentences for court supervision **only if**:
 - **2 years** have passed since you successfully finished your court supervision, except the offenses listed directly below.
 - **5 years** have passed since you successfully finished your court supervision for:
 - Domestic Battery
 - Criminal Sexual Abuse (victim was 18 or older)
 - Operation of an Uninsured Motor Vehicle
 - Operation of a Motor Vehicle when Registration is Suspended for Non-Insurance
 - Display of False Insurance Card
 - Scrap processor's failure to keep records
 - If you are 25 or older, your Reckless Driving supervision occurred when you were under 25, and you have no other convictions.
- Sentences of Qualified Probation, only if **5 years** have passed since you successfully finished your qualified probation.
- Minor traffic offenses can only be expunged if you were released without being charged.

What Types of Offenses CANNOT be Expunged?

- **Convictions** for misdemeanors and felonies unless they were reversed, vacated, pardoned by the Governor, approved by the Prisoner Review Board, or a cannabis conviction under the Illinois Cannabis Regulation and Tax Act, [410 ILCS 705](#).
- Court supervision or Qualified Probation that was **NOT** successfully completed.
- Court supervision for the following offenses:
 - Reckless Driving (if you were 25 or older at the time)
 - Driving Under the Influence
 - Sexual Offenses Against a Minor Under Age 18
- Convictions include a finding of guilt resulting in a sentence of: **probation** (other than Qualified Probation, successfully completed), **jail** or **prison** time, **conditional discharge**, **time considered served**, **fines** (with no other sentence), and supervisions or qualified probations that are not successfully completed.

What Types of Offenses CAN be Sealed?

- Arrests and charges for misdemeanors and felonies that did not lead to a conviction.
- Successfully completed sentences of Second Chance Probation.
- Minor traffic offenses can only be sealed if you were released without being charged.
- **Waiting Period:** After you complete your last sentence, you must wait before you can seal your case.
 - 2 year waiting period for misdemeanor convictions, ordinance violations, and qualified probations.
 - 2 year waiting period for felony convictions where you were sentenced to probation or conditional discharge and the sentence was not revoked.
 - 3 year waiting period for other felony convictions, except those listed in the section below titled "What Types of Offenses CANNOT Be Sealed?"
 - If your conviction requires registration under the Arsonist Registration Act or the Murderer and Violent Offender Against Youth Registry, you cannot seal that conviction until you are no longer required to register.
- The following can be **expunged after a 5 year waiting period**, but could qualify for **sealing after 2 years**:
 - Arrests or charges not initiated by arrest resulting in orders of first offender probation under Section 10 of the Cannabis Control Act, Section 410 of the Illinois Controlled Substances Act, or Section 70 of the Methamphetamine Control and Community Protection Act.



SEAL YOUR FELONY CONVICTION SOONER

If you complete a new education goal or career certification **during** the time of your last sentence AND the felony conviction resulted in prison or jail, or conditional discharge or probation that was revoked, you are able to file for sealing as soon as your sentence ends. The court will decide whether you can skip the waiting period. The following are examples of educational goals and career certifications that may be eligible:

- | | |
|-----------------------|---|
| ▪ high school diploma | ▪ vocational or technical certification |
| ▪ associate's degree | ▪ bachelor's degree |
| ▪ career certificate | ▪ passed the high school GED test |

What Types of Offenses CANNOT be Sealed?

The following types of arrests, charges, and sentences on your criminal record **cannot** be sealed:

- **Convictions and supervision** for these misdemeanors and felonies:
 - Driving Offenses
 - Driving Under the Influence ([625 ILCS 5/11-501](#))
 - Reckless Driving (unless under 25 at the time of the offense and no other convictions for DUI or reckless driving) ([625 ILCS 5/11-503](#))
 - Domestic Battery ([720 ILCS 5/12-3.2](#))
 - Violation of an Order of Protection ([720 ILCS 5/12-3.4](#)), Civil No-Contact Order ([740 ILCS 22](#)), or Stalking No-Contact Order ([740 ILCS 21/1-135](#))
 - Sexual Offenses
 - Soliciting a Prostitute or Patronizing a Prostitute ([720 ILCS 5/11-18](#))
 - Public Indecency ([720 ILCS 5/11-30](#)) if convicted of a felony (misdemeanor convictions are eligible)
 - Any other misdemeanor offense listed under Article 11 of the Criminal Code (with the exception of Prostitution) ([720 ILCS 5/11](#))
 - Any offense that requires registration under the Sex Offender Registration Act
 - Animal Offenses
 - Dog Fighting ([720 ILCS 5/48-1](#))
 - Class A misdemeanors under the Humane Care for Animals Act, such as beating or tormenting an animal, or abandonment ([510 ILCS 70/3.01](#); [510 ILCS 70/4.03](#); [510 ILCS 70/5](#); [510 ILCS 70/5.01](#); [510 ILCS 70/6](#); [510 ILCS 70/7.15](#))



STEP 2

FILL OUT AND FILE THE FORMS.



To determine if you can expunge or seal your criminal records, complete the **Case Worksheet** on **page 16** of this instruction packet. Once you have completed your worksheet, you do not need to look at your court records and RAP sheets to complete the *Request* form.

How do I fill out the forms?

- There are instructions on every form before each question to help you. Below is some additional information for sections of the *Request to Expunge and/or Seal Criminal Records* form.

How do I fill out the Request for Expungement table on page 2 of the *Request to Expunge and/or Seal Criminal Records* form?

- Use the information you entered on your Case Worksheet to fill out the table on page 2 of the form. The Case Worksheet is on page 16 of this instruction booklet and should be completed using your court records or RAP sheet.
 - **Arrest or Case Number:** Enter each arrest or case number listed on your court records or RAP sheet.
 - **Arresting Agency:** Enter the name of the police department that arrested you.
 - **Charge:** Enter the name of the offense you were charged with, such as “retail theft” or “cannabis possession.”
 - **Date of Arrest:** Enter the date you were arrested listed on your court records or RAP sheet.

- **Outcome:** Enter an outcome that reflects the outcome of your case. Use the shortened version of the outcome from the Outcome Abbreviations box.

If you have more than 10 arrests or cases for expungement:

- Mark the checkbox below the table that says “I have listed additional arrests or cases on the attached *Additional Arrests or Cases for Expungement* and/or *Additional Arrests or Cases for Sealing* form(s).”
- Enter the extra arrests or cases on the *Additional Arrests or Cases for Expungement* form.
 - You can use more than one *Additional Arrests or Cases* form if needed.

How do I fill out the Request for Sealing table on page 4 of the *Request to Expunge and/or Seal Criminal Records* form?

- Use the information you entered on your Case Worksheet to fill out the table on page 4 of the form. The Case Worksheet is on page 16 of this instruction booklet and should be completed using your court records or RAP sheet.
 - **Case Number:** Enter each arrest or case number listed on your court records or RAP sheet.
 - **Arresting Agency:** Enter the name of the police department that arrested you.
 - **Charge:** Enter the name of the offense you were charged with, such as “retail theft” or “cannabis possession.”
 - **Date of Arrest:** Enter the date you were arrested listed on your court records or RAP sheet.
 - **Outcome:** Enter an outcome that reflects the outcome of your case. Use the shortened version of the outcome from the Outcome Abbreviations box.

If you have more than 10 cases for sealing:

- Mark the checkbox below the table that says “I have listed additional arrests or cases on the attached *Additional Arrests or Cases for Expungement* and/or *Additional Arrests or Cases for Sealing* form(s).”
- Enter the extra cases on the *Additional Arrests or Cases for Sealing* form.
 - You can use more than one *Additional Arrests or Cases* form if needed.

How do I fill out the *Case List for Request to Expunge and/or Seal* form?

- You must enter all your arrest and case numbers that are listed on both the *Request to Expunge and/or Seal Criminal Records* and all *Additional Arrests or Cases for Expungement* and/or *Additional Arrests or Cases for Sealing* forms you used.
 - You can use more than one *Case List for Request to Expunge and/or Seal* form if needed.
- The *Case List* form must be filed with your *Request*.

How do I fill out the *Order to Expunge and/or Seal Criminal Records* form?

- Enter your information on this form where instructed.
- Enter the case number for all arrests, charges, and convictions in your criminal record. If an arrest did not result in formal charges, enter the arrest number.
- You will not check any boxes on the *Order* form. The judge will check the correct boxes once a decision has been made about your *Request*.
- You will get this form back from the court telling you if the court approved expungement or sealing for any of your criminal records.

How do I fill out the *Order Denying Request to Expunge and/or Seal Criminal Records* form?

- Enter your information on this form where instructed.
- The judge will enter the case numbers that are denied.

- You will not check any boxes on this form. The judge will check the correct boxes once a decision has been made about your *Request*.
- You will get this form back from the court telling you if the court denied expungement or sealing for any of your criminal records.

EXTRA HELP WITH THE FORMS

Easy Form

Illinois Legal Aid Online has an Easy Form program that helps you complete your forms. Easy Forms ask simple questions and put your answers in the right places on the forms. At the end of the program, you can download or email your forms to e-file or print them.

Easy Forms are free to use. Visit ilao.info/expungement-easy-form or scan the QR code to use the Easy Form.



For more information about going to court, including how to fill out and file forms, **call or text Illinois Court Help** at 833-411-1121 or go to ilcourthelp.gov.

If there are any words or terms used in these instructions that you do not understand, please **visit Illinois Legal Aid Online** at ilao.info/glossary. You may also find more information, resources, and the location of your local legal self-help center at ilao.info/lshc-directory.



COSTS AND FEES

There may be costs and fees to take part in a court case. This might include fees for filing court documents. Some case types have no fee for filing. Depending on the type of court case, there may be other costs and fees charged – for example, sheriff's fees for serving documents on the other people in the case. If you cannot afford to pay costs and fees, you can ask the court to file for free or at a reduced cost by filing an *Application for Waiver of Court Fees*.

This is a separate form you can find at ilcourts.info/fee-waiver-forms.

HOW TO FILE THE FORMS

- Before you file your forms, contact your Circuit Clerk's office and ask how your county files expungement and sealing requests.
- To find the phone number for your Circuit Clerk, visit ilcourts.info/clerks. You can also check your Circuit Clerk's website for more information.



STEP 3

NEXT STEPS FOR EXPUNGEMENT & SEALING.

Will I have a court date for my expungement or sealing case?

- You may need to go to court for a court date in front of a judge. Some counties schedule a court date right away, but others will only schedule a court date if there is an objection to your *Request*.

How does the court decide to approve or deny my *Request* for expungement or sealing?

Just because you may qualify for expungement or sealing under the law does not mean the judge will automatically approve your request. The court will consider several things before making a decision, including:

- **Any objections** filed by the police agencies or the prosecutor's office.
- **Whether you are legally eligible** for expungement or sealing.
- **Other factors** the judge is allowed to consider, such as:
 - How strong the evidence was that led to your conviction.
 - Why the State, the Arresting Agencies, or Chief Legal Officer believe your record should not be erased or hidden.
 - Your age, past criminal history, and work history.
 - How much time has passed between your arrest and when you filed your *Request*.
 - How a denial would negatively affect you (for example, job loss or housing problems).
 - Be ready to explain to the judge how having your record expunged or sealed would help you – especially if it affects your job, housing, or other important areas of your life.

Get ready for your court date.

- Think about how having your *Request* denied could hurt you, such as losing a job opportunity. Write down these specific examples to explain to the judge.
- Gather and make copies of pictures and documents you want the judge to see, like evidence of completion of a treatment program, letters of recommendation, proof of education, or degrees.

Attend court.



Make sure you know how to attend your court date.

Your court date could be in person, by phone, or by video. If it is by phone or video, it is called a "Remote Appearance." Call the Circuit Clerk or visit their website for more information. To find the phone number for your Circuit Clerk, visit ilcourts.info/clerks.

Your court date could be in person, by phone or by video.

- If your court date is in person:
 - Get to the courthouse at least 30 minutes early so you have enough time to get through security.
 - Go to the courtroom number listed on your court form.
 - If your forms do not have a courtroom number, look for a list of cases at the courthouse or ask someone at the Circuit Clerk's office.
 - Check in with the courtroom staff and wait for your name and case number to be called.
- If your court date is by phone or video:
 - Make sure to have the call-in or login information for your court date and make sure your technology is working.
 - Follow the instructions on the court notice you received. Call the Circuit Clerk or Circuit Court or visit their websites for specific technology instructions.

- Start trying to log-in to your courtroom at least 15 minutes before the start time in case you have any problems with technology.
- Follow these tips to attend court by phone or video: ilcourts.info/remote-resources.
- When your case is called, introduce yourself to the judge. If you are attending by phone or video remember to unmute yourself.
- You must attend the court date if one is scheduled. If you do not go to your court date, your request could be denied.
- Suggested items to bring with you to court:
 - Stamped copies of your forms;
 - Notes or documents detailing your employment and educational history;
 - Other papers related to your *Request* (like evidence of completion of a treatment program, letters of recommendation, proof of education, or degrees, etc.).
 - *Order to Expunge and/or Seal Criminal Records*;
 - *Order Denying Request to Expunge and/or Seal Criminal Records*.

How do I present my case to the judge?

- Tell your story clearly and honestly. Explain why you are asking for your record to be expunged or sealed.
- Be ready to talk about how a denial would affect you. For example, explain if it could cost you a job, housing, or education opportunity.
- Answer the judge's questions and then you will have a chance to reply if anyone objects to your Request.
- The police departments and prosecutors for your criminal cases may be at your court date and could ask you questions about your case.

How will I find out if my *Request* for expungement or sealing is approved or denied?

- If you do not receive a copy of the *Order* in court, the Circuit Clerk will mail or e-mail you a copy of the *Order* stating whether your *Request* was granted or denied.

Information for After Your Court Date.

What do I do with the *Order* approving my *Request* for expungement or sealing after I get it?

- If your *Request* was approved, it is very important that you keep a copy of the *Order* that you receive from the Circuit Clerk in a safe place.
- Once your arrests or cases are expunged or sealed, the court no longer has a court record for you and it may be very difficult to get another copy of the *Order*.

If my *Request* is approved, how long will I have to wait before my record is expunged or sealed?

- If the judge approves your *Request*, a copy of the *Order* will be sent by the Circuit Clerk to the police departments and prosecutors for your criminal cases.
- These agencies have **60 days** from the time they receive a copy of the *Order* to expunge or seal your records.

How will I know when my record has been expunged or sealed?

- The Illinois State Police will send you a letter stating that they have expunged or sealed your records. Until you receive this letter from the Illinois State Police, your records have not yet been expunged or sealed.

Can anyone find out about my criminal record once it has been expunged or sealed?

- Some agencies will be able to find out that you expunged a criminal record and see your sealed records:
 - **Law enforcement agencies** including police departments, prosecutors, correctional institutions, military, and Department of Child and Family Services can see all **sealed** records, expunged pardoned convictions, and some five-year-waiting-period expunged records for limited purposes.
 - Any employer required by law to conduct **fingerprint background checks** can see **sealed** felony conviction records. These employers include financial institutions, fire departments, private carrier companies, schools, park districts, health care organizations, and childcare organizations.
 - An employer not listed above and members of the public **cannot** see expunged or sealed records or find out that you have had a record expunged or sealed.

If my records are expunged or sealed, do I have to tell employers or potential employers about it?

No, you do not have to tell employers about expunged or sealed criminal records.

- On job applications you may answer “no” to the question, “have you ever been convicted” if your entire criminal record was expunged or sealed.
- If you filed your court forms for expungement or sealing and the court has not decided yet, you still have to report your criminal record to a potential employer after an interview or conditional offer of employment if they ask you about it.
- In Illinois it is against the law for employers to ask if you have expunged or sealed any criminal records unless they are one of the agencies above authorized by law.
- If an employer finds out that you expunged or sealed any criminal records, they cannot use that against you or they will violate the Illinois Human Rights Act [775 ILCS 5/1-101-10/104](#).

What can I do if my *Request* for expungement or sealing is denied?

- Ask for **Reconsideration**: You can ask the circuit court to look at your *Request* again.
 - File a Motion for Reconsideration with the Circuit Clerk within 60 days from the day you received a copy of the *Order* denying your *Request*.
 - You may have to pay another filing fee unless you have a fee waiver. You have to send a copy of your Motion for Reconsideration and Notice of Motion forms to the State's Attorney, Arresting Agencies, Chief Legal Officer (only for municipal ordinance violations), and Illinois State Police.
- **Appeal**: You can ask the appellate court to review the circuit court decision.
 - File a *Notice of Appeal* with the Circuit Clerk within 30 days from the day the *Order* was entered denying your *Request*; OR
 - If you file a Motion for Reconsideration and it is denied, file a *Notice of Appeal* within 30 days from the day the *Order* was entered denying your Motion for Reconsideration.
 - You will have to pay a filing fee to the appellate court unless you have a fee waiver from the appellate court. You will have to pay a fee for the Circuit Clerk to prepare the Record on Appeal unless you have a fee waiver from the circuit court.

What if my criminal record does not qualify for expungement or sealing?

You may be able to get one of the following certificates that will allow you to apply for expungement or sealing:

- **Certificate of Eligibility for Expungement:** You may be able to get this certificate if you were convicted of an eligible Class 3 or Class 4 felony and enlisted in, or received an honorable discharge from, the United States Armed Forces or National Guard and you served at least one tour of duty.
 - For more information, see the Prisoner Review Board's website at: prb.illinois.gov/certificate-of-expungement-for-military.html.
- **Certificate of Innocence:** This certificate may help you get paid money from the Illinois Court of Claims for an unjust conviction. You may be able to get this certificate if you proved you were improperly convicted.

What if my criminal record does not qualify for expungement or sealing and I cannot get one of the certificates above?

You may be able to get one of the following certificates or waiver to help you show that you are serious about getting a job or a professional license, or to get a job in a health care field:

- **Certificate of Good Conduct:** This certificate may help you get a job. You may be able to get the certificate if it has been two years since you successfully completed your sentence. You cannot get a *Certificate of Good Conduct* if you have been convicted of aggravated DUI, aggravated domestic battery, kidnapping or aggravated kidnapping, or an offense requiring registration under the Sex Offender Registration Act. Forms to ask for a *Certificate of Good Conduct* are found here: ilcourts.info/good-conduct.
- **Certificate of Relief from Disabilities:** This certificate may help you obtain a work-related license from the State of Illinois. You can get a Certificate of Relief from Disabilities at the time of sentencing, or any time after that. You cannot get a Certificate of Relief from Disabilities if you have been convicted of aggravated DUI, aggravated domestic battery, kidnapping or aggravated kidnapping, or an offense requiring registration under the Sex Offender Registration Act.
- **Health Care Waiver:** This waiver may help you get a health care job if you are not professionally licensed (registered nurse or licensed practical nurse) and want to work at a health care organization (nursing homes or hospitals). For more information, see the Health Care Worker Registry at: idph.state.il.us/nar/.

APPENDIX: CASE WORKSHEET

Use this worksheet to get the information from your entire criminal record in one place.

- You can find all the information you need to fill in the worksheet on your court record, RAP sheets, and information from the Illinois State Police Access and Review process. Below are some samples to help you locate the information you need.
- There are three tables starting on **page 19** of this instruction booklet to help you determine if a sentence or disposition qualifies as a conviction for the purposes of expungement and sealing.

How do I complete the Case Worksheet?

Using the information on your court records and any RAP sheets you have, fill in your Case Worksheet with this information for each case:

- **Arrest or Case Number:** Enter the arrest or case number listed on your court records or RAP sheet.
- **Arresting Agency:** Enter the name of the police department that arrested you.
- **Charge:** Enter all offenses you were charged with for each case number, for example “drug possession” and “possession of paraphernalia.”
- **Date of Arrest:** Enter the date you were arrested that is listed on your court record or RAP sheet.
- **Outcome:** Enter the sentence you received for the offense.
- **Completion of Sentence:** Enter the date your sentence ended successfully.

What if I see an arrest on my criminal record but there is no charge, disposition, or sentence listed?

- Not all arrests lead to charges, so there would not be a charge, disposition, or sentence listed on your record. All arrests without charges can be expunged if all the offenses on your entire record qualify. If not, then the arrests can be sealed. In the chart below, you only need to enter the Arresting Agency and Date of Arrest for arrests that did not result in charges.

	Arrest or Case Number	Arresting Agency	Charge	Date of Arrest	Outcome	Sentence Completion Date
1						
2						
3						
4						
5						
6						
7						
8						
9						
10						

SAMPLE CASE WORKSHEET

The samples below give two examples of how to fill out your own case worksheet. This page includes examples of how to use a **Cook County court disposition** and a **Chicago Police RAP sheet** to fill out your case worksheet.

Sample Case Worksheet:

	Arrest or Case Number	Arresting Agency	Charge	Date of Arrest	Outcome	Sentence Completion Date
1	05121978901	Chicago Police Department	Battery	11/4/2005	Stricken off with leave to reinstate	n/a

Sample Cook County Court Disposition

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS

PEOPLE OF THE STATE OF ILLINOIS

VS

JOHN DOE

CERTIFIED STATEMENT OF CONVICTION / DISPOSITION

I, MARIYANA T. SPYROPOULOS, Clerk of the Circuit Court of Cook County, Illinois, and keeper of the records and seal thereof do hereby certify that the electronic records of the Circuit Court of Cook County show:

The State's Attorney of Cook County/Local Prosecutor has filed a complaint with the Clerk of the Circuit Court.

Charging the above-named defendant with:

750-5/12-3-A-1 M A

11/05/2005 BOND SET BY RULE OF COURT 11/17/2005 3154
Smith, Gerald T.

11/17/2005 BOND FORFEITURE 8001
Smith, Gerald T.

12/13/2005 MOTION TO VACATE BOND FORF.
Smith, Gerald T.

12/13/2005 BOND FORFEITURE VACATED
Smith, Gerald T.

12/13/2005 STRICKEN OFF - LEAVE REINSTATE C001
Smith, Gerald T.

Sample Chicago Police RAP Sheet

CHICAGO POLICE DEPARTMENT
3510 S. Michigan Avenue/Chicago, IL 60653
Identification Section

Criminal History Report

DOE, JOHN
IR # 978380
SID #
FBI #
IDOC #

MALE
WHITE
5'10"
EYES: BRO
HAIR: BLK

Current Arrest Information:

Date of Birth: 2-OCT-1974
Age: 39 years
Place of Birth: CHICAGO, IL
SSN:
Driver's License #: Q4838171920282782
Driver's Lic. State: ILLINOIS
Scars, Marks & Tattoos:

Criminal Justice Summary: Total Arrests: 1 (1 Misdemeanor)

Arrest Name: DOE, JOHN Date: 11/4/2005 Holding Facility: NORRIDGE
Date of Birth: 2-OCT-1974 Arrest Address: 145 W. IL
DCN or CB: 05456347 Residence: 230 E. G IL
Officer: JONES Officer Badge #: 53 Arresting Agency: CPD

Count	Class	Type	Statute	Arrest Charge Description
[1]	A	M	720 ILCS 5/12-3	Battery

COURT CHARGES/ DISPOSITION

Statute	Charge	Class	Case#
720 ILCS 5/12-3	BATTERY	M	05121978901
Disposition: SOL	Disposition	Date:	13-DEC-2005
Sentence:	Sentence Date:		

This page includes examples of how to use a **court record or docket sheet (outside of Cook County)** and an **Illinois State Police RAP sheet**.

Sample Case Worksheet:

	Arrest or Case Number	Arresting Agency	Charge	Date of Arrest	Outcome	Sentence Completion Date
1	09-CM-117	Ford County Sheriff's Office	Possession of Drug Paraphernalia	10/23/2009	Probation	12/17/2010

Sample Court Docket Sheet (Not Cook County)

CRIMINAL HISTORY DATA FORD COUNTY, ILLINOIS					
CASE NUMBER	NAME ADDRESS	FILED WARRANT	CLOSED ARREST	DOB	SEX RACE
09-CM-117	Doe, Jane 123 N. Main St. n, IL	10/23/09	12/17/10	01/31/81	F
ARRESTING AGENCY: Ford County Sheriff's Office					
DUE DATE:					
TOTAL DUE:					
TOTAL CREDITS:					
TOTAL PAID:					
BALANCE:					
CHARGE/PLEA/DISPOSITION/SENTENCE DATE CLASS					
CHG	Poss. Of Drug Paraphernalia 720 ILCS 600/3.5				CM
DISP	Guilty				
SNT	Probation			12/17/2010	

Sample Illinois State Police RAP Sheet

ILLINOIS STATE POLICE Bureau of Identification 260 North Chicago Street Joliet, IL 60432-4075			
Criminal History Of: Doe, Jane State Identification #: IL 9876543 (Last Known Name)			
Conviction Status: MISDEMEANOR CONVICTION			
Custodial Status:			
Alias Name(s) DOE, JANE		Date of Birth 01/13/1981	
SUBJECT IDENTIFICATION DATA			
Sex: FEMALE		Date Reported: 10/23/2009	
Race: WHITE		Date Reported: 10/23/2009	
Height: 5'4"		FBI#: Chicago IR#:	
Weight: 105			
Eyes: BLUE			
Hair: BLACK			
Skin: MEDIUM			
CRIMINAL HISTORY DATA			
DCN: P12939		Arrest	
Name: DOE, J		Date of Arrest: 10/23/2009	
Residence: 12		Date of Birth: 01/13/1981	
Arresting Agency: FORD COUNTY SHERIFF'S OFFICE			
Agency Case Number: 1234567		Officer Badge Number: 008	
Arrest Charges			
Count	Statute Citation	Literal Description	Class
1	720 ILCS 600/3.5	Poss. Of Drug Paraphernalia	CM
State's Attorney Section			
Filing Decision: FILED		Decision Date: 10/23/2009	
Count	Statute Citation	Literal Description	Class
1	720 ILCS 600/3.5	Poss. Of Drug Paraphernalia	CM
Agency Name: FORD COUNTY STATE'S ATTORNEY			
Count	Statute Citation	Literal Description	Class
1	720 ILCS 600/3.5	Poss. Of Drug Paraphernalia	CM
Disposition: PROBATION		Disposition Date: 12/17/2010	
Case Number: 09CM117			



CASE OUTCOME DEFINITIONS

Look at all of the entries in the “Outcome” column of your Case Worksheet. All cases that were not convictions are eligible for expungement (unless otherwise excluded, see page 7 of this booklet). Cases that resulted in convictions may be eligible for sealing (see page 8 of this booklet).

How do I know if I was “convicted” of an offense and cannot have my criminal record expunged?

The disposition (outcome) of the offense on your record tells you if you were convicted or not. The tables below explain what the disposition codes or descriptions on your record mean and if you were convicted or not.

- If you see the disposition for your offense on **Table 1**, you were not convicted for that offense and it can be **expunged**.
- If you see the disposition for your offense on **Table 2**, you were convicted of that offense but you have an **exception** that allows you to apply for **expungement**.
- If you see the disposition for your offense listed on **Table 3**, you were convicted of that offense and it **cannot** be expunged, but it may be eligible to be **sealed**.

TABLE 1:

These outcomes mean that you were not convicted and the case, charge, or arrest is ELIGIBLE FOR EXPUNGEMENT

Outcome Abbreviation	Disposition/Outcome	More Information
DA	Dismissal	The state stopped prosecuting your case and the court dismissed the case.
DA	Finding of No Probable Cause (FNPC)	The court dismissed the case because it decided that there was no probable cause (reason) to believe that you had committed the offense that you were accused of.
DA	Found Not Guilty (FNG)	The court decided you were not guilty of the offense you were charged with.
DA	Nolle Prosequi	The state stopped prosecuting your case and the court terminated the case.
DA	Non-Suit	The prosecutor has the option to bring the case back up again. If they do not, the case is considered terminated.
DA	Stricken Off with Leave to Reinstate (SOL)	The State has the option to bring the case back up again. If they do not within 120 – 160 days, the case is considered terminated.
RWC	Released without Charging	You were arrested but not charged with an offense or brought to court.
S	Court Supervision, Completed Successfully	The court kept your case open for a set period of time. You followed the conditions during that time and the court dismissed the criminal charges against you.
QP	Successfully completed First Offender Drug Probation or Qualified Probation	This type of probation can also be called 410, 710, 1410, or TASC probation when the court determines the arrest was a result of alcohol or drug addiction and must be reflected in the record. You can tell if you received this special type of probation by the court disposition.

TABLE 2:

These outcomes mean that you were convicted, but there is a special situation and the case is **ELIGIBLE FOR EXPUNGEMENT**

Outcome Abbreviation	Disposition/Outcome	More Information
RV	Guilty/Conviction Reversed Or Vacated	You were found guilty of an offense, but the conviction was reversed or vacated.
P	Guilty/Conviction with a Pardon from the Governor	You were found guilty of an offense, but the Governor granted you a pardon that allows the expungement of your criminal record.
CE	Guilty/Conviction with a Certificate of Eligibility for Expungement from the Prisoner Review Board	You were found guilty of an offense, but you petitioned the Prisoner Review Board and were granted eligibility to erase a conviction from your criminal record.

TABLE 3:

These outcomes mean that you were convicted and the case is **ELIGIBLE FOR SEALING**

Outcome Abbreviation	Disposition/Outcome	More Information
MC or FC	IDOC (Illinois Department of Corrections) or County Departments of Corrections (jail)	You were found guilty of an offense. You were sentenced to time in jail or prison.
MC or FC	Conditional Discharge	You were found guilty of an offense. You were sentenced to comply with certain conditions, but you did not have to report to a probation officer
MC or FC	Probation (not Qualified Probation)	You were found guilty of an offense. You were sentenced to report to a Probation Officer.
MC or FC	Fine (without court supervision)	You were found guilty of an offense. You were sentenced to pay a fine.

● Use MC if you were convicted of a misdemeanor. Use FC if you were convicted of a felony.